

20STCV45399 20STCV45399

County: los-angeles

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Case Number: 20STCV45399 Hearing Date: September 4, 2026 Dept: N

TENTATIVE RULING

Plaintiff Kathy Lydon's motion to tax costs is DENIED in Part and GRANTED in Part.

Lydon to give notice.

REASONING

Plaintiff Lydon moves to strike costs on grounds that the memorandum of costs was prematurely filed and any recovery is stayed pending the filed appeal. Plaintiff also challenges the underlying basis for recovery in the form of an improperly granted motion for summary judgment. Finally, Plaintiff contends the costs are excessive and lacking in support regarding necessity. Defendant in opposition maintains all costs were reasonably incurred and the memorandum of costs is not premature. The court record shows no reply on file at the time of the tentative ruling.

Standard

Code of Civil Procedure section 1033.5 sets forth the costs recoverable by the prevailing party. To recover a cost, it must be reasonably necessary to the litigation and reasonable in amount. (*Perko's Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 244.) In reviewing a motion to tax costs, a guiding principle is that all costs must be "reasonably necessary to the litigation" and "reasonable in need and amount." (*Acosta v. SI Corporation* (2005) 129 Cal.App.4th 1370, 1380.)

If an item of cost is expressly allowed by statute and if items appear on their face to be proper, the verified memorandum of costs is prima facie evidence of their propriety, shifting the burden of proof to the objecting party to show that the items were unnecessary or unreasonable. (*Ibid.*; *Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131-132.) If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-74.) On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (*Id.*) "Only after such costs are challenged by a motion to tax do the parties need to justify their claims by submitting documentation of the costs they have incurred." (*Bach v. County of Butte* (1989) 215 Cal.App.3d 294, 308.) Costs not expressly permitted under Code of Civil Procedure section 1033.5, subdivision (a), but not expressly denied under Code of Civil Procedure section, subdivision (b), may be recovered in a court's discretion. (*Science Applications International Corporation v. Superior Court* (1995) 39 Cal.App.4th 1095, 1103.)

Courts have discretion to disallow costs that were unreasonably incurred. (Michell v. Olick (1996) 49 Cal.App.4th 1194, 1201.) Cost awards are reviewed under an abuse of discretion standard. (El Dorado Meat Co. v. Yosemite Meat and Locker Service, Inc. (2007) 150 Cal.App.4th 612, 616; Gibson v. Bobroff (1996) 49 Cal.App.4th 1202, 1209.)

Self-Represented Party

“Although self-represented litigants are not entitled to special treatment, they are entitled to the same treatment as a represented party. ... ‘Trial judges must acknowledge that in propria persona litigants often do not have an attorney’s level of knowledge about the legal system and are more prone to misunderstanding the court’s requirements.’ (Citation). When one party has counsel and the other does not, the trial court ‘should monitor to ensure the in propria persona litigant is not inadvertently misled, either by the represented party or by the court... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson.’” (Petrosyan v. Prince Corp. (2013) 223 Cal.App.4th 587, 594.)

Timing

“A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case. (Cal. Rules Ct., rule 3.1700(a).) “Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum.” (Cal. Rules Court, rule, 3.1700(b)(1).) The time for filing is extended for mail or electronic service pursuant to either Code of Civil Procedure sections 1010.6, subdivision (a)(4) or 1013.

The court served notice of entry of judgment on February 27, 2025. The memorandum of costs was filed on March 11, 2025—12 days after service of the minute order. The motion to tax was filed on March 26, 2025. The motion is timely.

Defendant filed an (amended) memorandum of costs without leave of court on April 14, 2025. The amended memorandum of costs is untimely given it was filed more than 15 days after the February 27, 2026, minute order notifying Defendant of entry of the judgment. The amended memorandum will not be considered. The court only rules on the timely filed March 11, 2025, memorandum of costs.

Appeal & Stay

The court declines to issue a stay relative to the hearing on this order. The appeal in no way precludes the hearing on the motion, even with the final judgment relied upon under challenge. (Hennessy v. Superior Court of California in and for City and County of San Francisco (1924) 194 Cal. 368, 372-373.)

Judicial Officer Review and Summary Judgment

The accusations of improper judicial conduct arising from a disagreement with the orders of the court are not the proper subject matter of a motion to tax costs. Plaintiff may present any and all such positions to the Court of Appeal.

Costs

Other than the challenges to the underlying order granting summary judgment, the court finds no basis preventing a finding of Defendant Parvaz Mizrahi, DDS a prevailing party, and therefore entitled to recover costs. (Code Civ. Proc., § 1032.)

Plaintiff challenges the following five items on grounds of reasonableness and necessity. All but item 8, witness fees, are addressed in the motion.

1. Filing Fees, \$1,484.89

4. Deposition costs, \$1,183.50

5. Service of Process, \$2,236.55

13. Models, etc., \$650.48

14. Electronic Service, \$461.08

15. Expert Fees (CCP §998, subd. (c)(1), \$3,900

TOTAL COSTS of \$9,916.50

Item 1

Defendant actually attests to \$1,796.80 in costs but the memorandum of costs only lists total fees of \$1,484.89. The late “amended” memorandum of costs constitutes an invalid filing and will not be considered.

The costs in the memorandum of costs on file are properly articulated and enumerated in conformance with the court fee schedule. [Declaration of Storm Anderson, ¶¶ 11-13.] The motion is denied as to the amount provided in the March 11, 2025, filed memorandum of costs.

Item 4

Plaintiff's only position is a lack of recall of any deposition. Defendant identifies all deposition costs as they related to subpoenaed records from numerous third parties. The total costs actually exceed the listed \$1,183.50 listed in the memorandum of costs. [Anderson Decl., ¶ 14.] The motion is denied as to the amount provided in the March 11, 2025, filed memorandum of costs.

Item 5

The opposition lacks any address of the service of process fees. The fees lack any basis of articulated support. The court declines to make the argument for Defendant. (*Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [“When [a party] fails to raise a point or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived”].) The motion to tax Item 5, \$2,236.55 in service of process fees in the March 11, 2025, memorandum of costs is granted.

Items 13

The opposition lacks any address of the service of process fees. The fees lack any basis of articulated support. The court declines to make the argument for Defendant. The motion to tax Item 13, \$650.48 in model, photocopy, etc. in the March 11, 2025, filed memorandum of costs is granted.

14. Electronic Service, \$461.08

Defendant presents proof of \$370.88 in electronic filing fees. [Anderson Decl., ¶ 16.] The court finds the costs supported but below the amount listed in the memorandum of costs. The motion is therefore granted reducing costs to \$370.88 for electronic service within the March 11, 2025, filed memorandum of costs.

15. Expert Fees (CCP §998, subd. (c)(1), \$3,900

The court file shows no filed settlement offer pursuant to Code of Civil Procedure section 998, subdivision (c). The opposition lacks articulation of any actual date of service or proof of any service. The court cannot determine any and all dates any alleged fees were incurred, and declines to consider unsupported positions. (Badie v. Bank of America (1998) 67 Cal.App.4th 779, 784–785 [“When [a party] fails to raise a point or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived”].) The motion tax the expert fee request in the March 11, 2025, memorandum of costs is granted.

Conclusion

The motion is denied as to items 1 and 4. The motion is granted as to items 5, 13 and 15 is granted in total. The motion on number 14 is granted in order to limit costs to \$370.88. All other recoverable costs in items 1 and 4 are limited to the March 11, 2025, filed memorandum of costs.